



CHAPTER liv.

An Act to confirm a Scheme of the Charity Commissioners for the Application or Management of the Charity consisting of the Independent Chapel in Coombe Street in the Parish of St. Mary Major in the City of Exeter. A.D. 1914.

[8th July 1914.]

WHEREAS the Charity Commissioners in their report to His Majesty of their proceedings during the year one thousand nine hundred and twelve reported that they had approved and certified a scheme for the application or management of the charity consisting of the Independent chapel in Coombe Street in the parish of St. Mary Major in the city of Exeter comprised in indentures dated respectively the twenty-ninth day of September one thousand eight hundred and eleven and the thirtieth day of December one thousand eight hundred and eleven or one of them and in a scheme made by the Charity Commissioners on the twenty-second day of January one thousand nine hundred and one:

And whereas it is expedient that the scheme as the same is fully set out and defined in the schedule to this Act should be confirmed:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The said scheme is hereby confirmed Provided always that nothing in this Act or in the said scheme shall be held to interfere with the ordinary jurisdiction over endowed charities

Confirma-
tion of
scheme.

[Ch. liv.] *Coombe Street (Exeter)* [4 & 5 GEO. 5.]
Independent Chapel Scheme Confirmation Act, 1914.

A.D. 1914. now exerciseable or hereafter to become exerciseable by the
— High Court of Justice and the Charity Commissioners.

Short title. **2.** This Act may be cited as the Coombe Street (Exeter)
Independent Chapel Scheme Confirmation Act 1914.

S C H E D U L E.

A.D. 1914.

*Scheme for the Application or Management of the Charity
consisting of the Independent Chapel in Coombe
Street in the Parish of St. Mary Major
in the City of Exeter.*

1. The above-mentioned charity and the endowments thereof consisting of the above-mentioned chapel with the site and appurtenances shall be administered and managed by the Devon Congregational Union (Incorporated) as the trustees of the charity subject to and in conformity with the provisions of this scheme.

2. The said chapel with the site and appurtenances is hereby vested in the said union for all the estate and interest therein belonging to or held in trust for the charity.

3. The trustees shall permit the chapel building belonging to the charity with the appurtenances to be used occupied and enjoyed as a place for the public worship of God and for preaching the Gospel of the Lord Jesus Christ according to the principles and usages for the time being of Protestant dissenters of the Congregational denomination commonly called Independents being Pædobaptists under the direction of the Southernhay Congregational Church in the city of Exeter (hereinafter called the said church) and for the instruction of children and adults and for the promotion of such other charitable purposes whether religious or philanthropic in connexion therewith as the said church shall from time to time direct.

4. The trustees shall permit to officiate in the said building as preacher such minister or other person or persons as the deacons of the said church for the time being or any committee from time to time appointed by the said church for the purpose or any association of lay preachers or other society to whom the said church may for the same purpose delegate the powers and duties in this behalf shall appoint unless any such appointment shall be negatived by a resolution of the said church. Provided that such minister or other person as aforesaid shall hold preach and maintain the doctrines set out in the schedule hereto and no person shall be permitted to officiate as preacher in the said building who shall be proved guilty of immoral conduct or shall cease to hold or preach any of the said doctrines.

5. The trustees shall permit the deacons of the said church or other person or persons appointed for the purpose by the said church to receive all moneys contributed or subscribed and also the net rents arising from any lease of the property of the charity and any other money

A.D. 1914. — which may come into the hands of the trustees in connexion with the charity in the nature of income and after payment thereof of all outgoings for rents or rentcharges (if any) mortgage interest (if any) taxes rates (if any) insurances renewals alterations repairs and all other costs or expenses for which the trustees may be liable to pay such sum in payment of the incidental and other expenses attending the maintenance of divine worship in the buildings belonging to the charity and for the other purposes of this scheme in relation to the charity as the said church shall direct. Provided nevertheless that moneys contributed or subscribed for any specified purpose shall not be subject to this clause but shall be applied for such specified purpose.

6. The trustees shall from time to time under the direction of the said church permit the buildings for the time being belonging to the charity to be repaired altered enlarged or taken down and rebuilt so as to render the same better adapted for the purposes of the charity and shall under the like direction from time to time permit the erection of additional buildings.

7. Except as regards any property of the charity which is registered as a place of meeting for religious worship with the Registrar-General of Births Deaths and Marriages in England and is bonâ fide used as a place of meeting for religious worship and except as regards such other property (if any) of the charity as by virtue of any provisions of the Charitable Trusts (Places of Religious Worship) Amendment Act 1894 is exempt from the operation of the Charitable Trusts Acts 1853 to 1894 the trustees shall not make or grant otherwise than with the approval of the Charity Commissioners any sale exchange mortgage or charge of the estate of the charity or any lease thereof in reversion after more than three years of any existing term or for any term of life or in consideration wholly or in part of any fine or for any term of years exceeding twenty-one years.

8. Subject to the restrictions contained in the last preceding clause hereof the trustees shall whenever required by a special resolution of the said church sell mortgage or demise for any term of years the property of the charity or any part thereof or exchange the same or any part thereof for any other freehold copyhold customary or leasehold premises in accordance with the directions of the said church. The trustees shall stand possessed of the moneys arising from any such mortgage sale or exchange and any other moneys which may come to their hands in connexion with the charity in the nature of capital after paying all costs and expenses incurred in relation thereto upon trust to lay out and apply the same in or towards the enlargement rebuilding improvement or repair of the buildings belonging to the charity or in or towards the purchase of other premises of any tenure or towards any of the other purposes of this scheme in relation to the

charity in such manner as the said church shall by special resolution direct but so that any premises so purchased or so taken in exchange whether freehold copyhold customary or leasehold shall be situate within two miles of the site of the chapel now belonging to the charity and shall be held by the trustees upon the same trusts and subject to the same powers and provisions as are herein declared concerning the buildings now belonging to the charity. If any difference shall arise as to whether moneys coming into the hands of the trustees are capital or income the decision of the deacons of the said church shall be conclusive. A.D. 1914.

9. Notwithstanding anything herein-before contained if the regular public worship of God in the chapel building belonging to the charity is discontinued for six calendar months together the trustees may in their uncontrolled discretion but subject to the said restrictions herein-before contained either let or mortgage or sell the property of the charity or any part thereof and pay and apply the net proceeds of such letting mortgage or sale remaining after payment of all expenses for such religious purposes not tending to the promulgation of doctrines inconsistent with those herein-before referred to and in such manner as the trustees shall in their discretion think proper.

10. Upon any mortgage lease sale or exchange purporting to be made in pursuance of any trust or power herein contained no mortgagee lessee purchaser or other person dealing bonâ fide with the trustees shall be bound or concerned to inquire whether the occasion for executing or exercising such trust or power has arisen or any of the said events have taken place or (except as regards the said restrictions herein-before contained) otherwise as to the propriety or regularity of any such mortgage lease sale or exchange and notwithstanding any impropriety or irregularity in such mortgage lease sale or exchange the same shall as regards a purchaser mortgagee lessee or other person as aforesaid (except as regards the said restrictions) be deemed to be within the aforesaid trusts or powers and be valid accordingly.

11. The trusts powers discretions and authorities hereby given to or vested in the trustees shall be exerciseable by the committee of the said Devon Congregational Union (Incorporated) or a majority of such committee but in case the said church shall at any time by a special resolution request the said Devon Congregational Union (Incorporated) or any other incorporated union or association acting as trustees to retire from the trusteeship of the charity or in case such union or association shall at any time desire to retire or be discharged from the said trusteeship and shall signify such desire by giving three calendar months' notice in writing under the hand of their secretary addressed to the pastor and deacons of the said church the said church shall forthwith or (as the case may be) before the expiration of the said

A.D. 1914. notice proceed to appoint as new trustees of the charity either duly qualified individual persons or another incorporated union or any incorporated association of Congregational churches and the said Devon Congregational Union (Incorporated) or other the union or association so ceasing to be trustees of the charity shall at the request and cost of the said church convey or assign the hereditaments then vested in such union or association and affected by the trusts of this scheme to such persons or to such other incorporated union or association as the said church may appoint. During such period as an incorporated union or association shall act as trustees of the charity they shall be entitled to act according to their rules and byelaws from time to time in force.

12. In the event of the said Devon Congregational Union (Incorporated) or any other incorporated union or association acting as trustee ceasing to be trustees of the charity and of the church deciding to appoint individual trustees in their place the following provisions as to the appointment of new trustees and as to the discharge and retirement of trustees by way of extension and variation of the statutory provisions shall take effect:—

- (i) The number of trustees shall not be less than five nor shall they be reduced to less than five and upon any new appointment the number shall if possible be made up to at least the original number:
- (ii) No person shall be appointed a trustee who is not a member of a Congregational church and any trustee who ceases to be a member of such a church or who becomes bankrupt or remains out of the United Kingdom for more than twelve consecutive calendar months shall ipso facto cease to be a trustee of the charity:
- (iii) A new trustee or new trustees may be appointed in the place of any trustee who through death retirement or any other cause ceases to be a trustee or who desires to be discharged from the trusts of the charity or who refuses or is unfit to act or is incapable of acting therein:
- (iv) The power of appointing new trustees under this scheme shall be vested in the said church and shall be exercised by resolution of a special meeting of the said church:
- (v) Any one of the trustees may when there are more than five trustees retire from the trusts of the charity on giving two calendar months' notice in writing of his intention so to do to the then pastor and deacons or one of the deacons of the said church (if there shall be such pastor or deacon) and to each of the other trustees for the time being and upon the termination of such two months the trustee giving the notice

shall cease to be a trustee to all intents and purposes provided that any notice sent by post to the last known usual place of abode in England of any trustee shall be sufficient notice to him hereunder : A.D. 1914.

- (vi) All the trusts powers discretions and authorities hereby given to or vested in the trustees shall be exerciseable by a majority of the trustees as fully and effectually in all respects as the same might have been exercised by the whole of the trustees.

13. Except where it is hereby expressly provided that a special resolution of the said church or a resolution of a special meeting thereof is requisite the provisions of this scheme may in all respects be managed and carried out under the direction of the members of the said church at ordinary meetings of the church which shall be held and regulated according to the ordinary practices and usages of Congregational churches which practices and usages shall also apply to special meetings of the said church.

14. In the event of the removal of the said church to another locality the powers hereby vested in the said church in regard to the charity shall not thereby be suspended or in any manner impaired or affected.

15. The Charity Commissioners may from time to time in the exercise of their ordinary jurisdiction establish schemes for the alteration of any of the provisions of this scheme as if those provisions had been made by the founder in the case of a charity having a founder.

SCHEDULE TO THE SCHEME.

The unity of the Godhead as Father Son and Holy Spirit.

The incarnation resurrection and ascension of the only-begotten Son of the Father in Jesus Christ Who is our propitiatory sacrifice our Redeemer our Judge the sole Head of His Church.

The quickening indwelling guiding and sanctifying of the Holy Spirit.

The revelation of God's grace to man and of man's duty to God in the Holy Scriptures.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., 29, BREAMS BUILDINGS, FETTER LANE, E.C., and
28, ABINGDON STREET, S.W., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America, the Continent of Europe and Abroad;
T. FISHER UNWIN, LONDON, W.C.

